

15. *Midland v. Mills*, Case No. CIVDS1915848

Defendant's Motion to Vacate Judgment

7/8/26, 9:00 a.m., Dept. S-17

The Court would **DENY**.

This matter was initially filed against Defendant on May 22, 2019. A proof of service was filed on June 27, 2019, and a default judgment was taken on November 16, 2020. Now, in the light of collection efforts, Defendant filed a single, hand-written document titled Motion to Vacate Judgment. The document simply asserts "lack of notice" but is not supported by declaration or any other tangible evidence.

The instant motion, however, appears to be attempting to assert that the service that occurred almost six years ago was somehow improper. That argument requires a motion to quash service. However, even if viewed through that lens, the service was effectuated by a registered process server on a party who is identified as Plaintiff's "Co-resident". (Proof of Service, filed June 27, 2019.) When service is done by a registered process server, there is a rebuttable presumption as to the facts stated in the return. If the presumption applies, then the defendant bears the burden to produce evidence of non-service. (*American Expr. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.) Thus, here, movant would bear the burden to produce evidence of non-service. However, no evidence has been submitted.

16. *Koppen, Jr., v. FCA US, LLC, et al*, Case No. CIVSB2427507

Defendant FCA's Motion to Compel the Deposition of Plaintiff

7/8/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** and order Plaintiff's deposition to move forward on July 10, 2026, as agreed to by the parties. Sanctions are not requested and are, therefore, not at issue.

17. *Wallace v. Superior Court of Calif., Co. of Orange*, Case No. 30-2026-01546133-CU-MC-NJC
Plaintiff's Motion to Strike Portions of Defendant's Answer
7/8/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would construe the motion to strike the first through eighth affirmative defenses in Defendant's answer as a motion for judgment on the pleadings. In that light, the Court would **DENY** the motion because the allegations are proper objections raised by way of the answer and the allegations raise new matters.

Case Summary

In this matter Plaintiff seeks to obtain access to documents and records associated with her ADA accommodation file from within the Defendant Court. On February 9, 2026, Plaintiff filed a verified complaint against the Superior Court of Orange County, alleging causes of action for (1) injunctive relief and (2) declaratory relief. On April 29, 2026, Defendant Court filed its answer including eight "affirmative defenses."

Analysis

Now before the Court, Plaintiff moves to strike each of Defendant Court's affirmative defenses on the grounds that they are each irrelevant, conclusory, and not drawn in conformity with the law.

As a preliminary matter, "a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer." (*Pierson v. Sharp Mem'l Hosp.* (1989) 216 Cal.App.3d 340, 342.) "A motion to strike does not lie to attack a [pleading] for insufficiency of allegations to justify relief; that is a ground for general demurrer." (*Pierson, supra*, 216 Cal.App.3d at p. 342 [emphasis added].) Here, Plaintiff's motion appears procedurally improper since it is brought on grounds for which a general demurrer is required. However, a court may treat an improper motion to strike for failure to state a cause of action as a motion for judgment on the pleadings, which "is made on the same grounds and decided on the same basis as a general demurrer." (*Ibid.*)

A motion for judgment on the pleadings has the same function as a general demurrer, meaning it can be predicated on an answer's failure to state facts sufficient to constitute a defense [Code Civ. Proc. § 430.20, subd. (a)] and should only be sustained where the facts alleged on the face of the answer fail to state any valid defense entitling the defendant to relief against the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.) The defendant may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but, if the essential facts of some valid defense are alleged, the answer is sufficient against a general demurrer. (*Ibid.*)

Plaintiff argues that Defendant Court's affirmative defenses are not defenses but, rather, merely restatements of the standards for a demurrer. Plaintiff asserts that each defense lacks supporting factual allegations and only challenges the sufficiency of Plaintiff's complaint.

In opposition, Defendant Court asserts that: (1) its answer factually alleges that Plaintiff seeks records that are not "judicial administrative records" subject to disclosure; (2) the records are exempt from disclosure; (3) Plaintiff did not follow the required procedure; (4) Plaintiff did not contact the correct individual; (5) the records sought were not reasonably identified by Plaintiff; (6) Defendant Court took reasonable efforts to assist Plaintiff to refine her records request; and (7) Defendant Court was unable to find responsive documents due to Plaintiff's failure to refine her search.

On reply, Plaintiff argues that, through its opposition, Defendant Court attempts to amend its answer by arguing factual allegations, legal analysis, and explanations that are not included in its answer. Plaintiff argues the opposition contains an "extensive discussion" regarding Rule 10.500 and distinctions between "judicial administrative and adjudicative records," which are not contained in Defendant Court's answer. However, contrary to Plaintiff's assertions, Defendant Court directly alleges Rule 10.500 in its answer (second and fourth affirmative defenses) and alleges its bases for contending that the records requested by Plaintiff are not "judicial Administrative records" subject to production (second affirmative defense). Therefore, Plaintiff's argument on this point is without merit.

Finally, Plaintiff's argument that the "affirmative defenses" are not sufficiently pleaded also appears without merit. In *State Farm Mutual Automobile Insurance Co.*, the court explained the difference between denials and affirmative defenses: "Under Code of Civil Procedure section 431.30, subdivision (b)(2), the answer to a complaint must include '[a] statement of any new matter constituting a defense.'" (*State Farm Mutual Automobile Insurance Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (*State Farm Mutual, supra*, 228 Cal.App.3d at p. 725 [internal citation omitted].) "Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*Ibid.*) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not 'new matter,' but only a traverse [(denial)]." (*Ibid.*)

Here, Defendant Court's defenses allege "new matters" that are not found on the face of Plaintiff's complaint. Plaintiff's complaint alleges that Defendant Court is required to provide her with certain records. In its "affirmative defenses," Defendant Court alleges reasons why Plaintiff is not entitled to the records she seeks or why it cannot comply. Defendant Court's affirmative defenses allege the legal grounds and ultimate facts in support of its denial, which are not found on the fact of Plaintiff's complaint and constitute "new matters."
